IN THE UNITED STATES PATENT AND TRADEMARK OFFICE
BEFORE THE TRADEMARK TRIAL AND APPEAL BOARD

TreeFrog Development, Inc., Opposer,	)	Opposition No. 91232860
	)	App. No. 86905410
v.	)	
Sakar International, Inc.,	)	
	)	Mark: LIFEJACKET
Applicant	)	

OPPOSER'S REBUTTAL BRIEF

Redacted Version

November 29, 2018

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I. INTRODUCTION.

The purpose of Opposition proceedings based on allegations of likelihood of confusion is focused on issues surrounding the impact of registration of a contested mark on the Principal Register. Applicant, likely recognizing the weaknesses of its position, attempts to draw the Board's attention to a number of irrelevant factors—*i.e.*, the volume of sales of the parties' respective LIFEJACKET products, whether speakers were within Opposer's natural zone of expansion in 2014, and whether the parties' LIFEJACKET products presently appear side-by-side at brick-and-mortar retailers. But the fact remains that what matters, and what this case is about, is whether registration of Applicant's LIFEJACKET mark is likely to cause consumer confusion, mistake or deception and damage Opposer.

This case is not about counterfeiting—whether consumers will think Applicant's LIFEJACKET speaker cases are Opposer's LIFEJACKET mobile device cases. This case is about whether consumers will mistakenly believe Applicant's goods come from Opposer or the source of Opposer's goods. This case is not about whether the parties' goods are side-by-side on shelves today. This case is about whether the use of Applicant's applied-for mark on Applicant's recited goods creates the risk of a likelihood of consumer confusion or mistake (today or in the future) as to the source of Applicant's goods.

This case is not about the state of the market in 2014 (Applicant's date of first use). The date restrictions Applicant seeks to apply to Opposer's evidence is based on Applicant's erroneous reliance on "zone of expansion" law, instead of law addressing the *duPont* factors. This case is about the entirety of the record presented by Opposer, most of which Applicant failed to address. Applicant did not present the Board with any counter-evidence. The record proves registration of LIFEJACKET to Applicant would be counter to 15 U.S.C. § 1052(d). This opposition should be sustained and the Board should refuse registration of Applicant's mark.

II. OPPOSER HAS STANDING THROUGH ITS OWNERSHIP OF AN INCONTESTABLE REGISTRATION AND CONTINUOUS USE OF THE LIFEJACKET MARK IN COMMERCE SINCE AT LEAST AS EARLY AS 2012.

Applicant suggests the Board can dispose of this opposition because Opposer has essentially abandoned its mark. To establish standing in an opposition, a plaintiff must prove that it has a "real interest," *i.e.*, a "reasonable" basis for its belief of damage. *Empresa Cubana Del Tabaco v. Gen. Cigar Co.*, 111 U.S.P.Q.2d 1058, 1062 (Fed. Cir. 2014); *Ritchie v. Simpson*, 50 U.S.P.Q.2d 1023, 1025 (Fed. Cir. 1999); *Lipton Indus., Inc. v. Ralston Purina Co*., 213 U.S.P.Q. 185, 189 (CCPA 1982). Applicant, in its brief, does not contest Opposer's standing.

Opposer has established its standing by properly introducing into evidence its pleaded incontestable registration. *See, e.g., Cunningham v. Laser Golf Corp.*, 55 U.S.P.Q.2d 1842, 1844 (Fed. Cir. 2000); *N.Y. Yankees P'ship v. IET Prods. & Servs., Inc.*, 114 U.S.P.Q.2d 1497, 1501 (TTAB 2015). Opposer is to be afforded all presumptions given to an incontestable registration.

Abandonment has not been pled by Applicant nor proven. Notwithstanding, Opposer has introduced evidence of common law use of its LIFEJACKET mark. (32 TTABVUE 2-4.) That same evidence shows Opposer has not abandoned its mark. Specifically, [redacted]. An example is end cap displays in Opposer's retail locations, shown below:[1]

[1] Applicant contends (37 TTABVUE 10) that Opposer has never displayed the LIFEJACKET cases at retail. These images show Applicant's assertion is false.

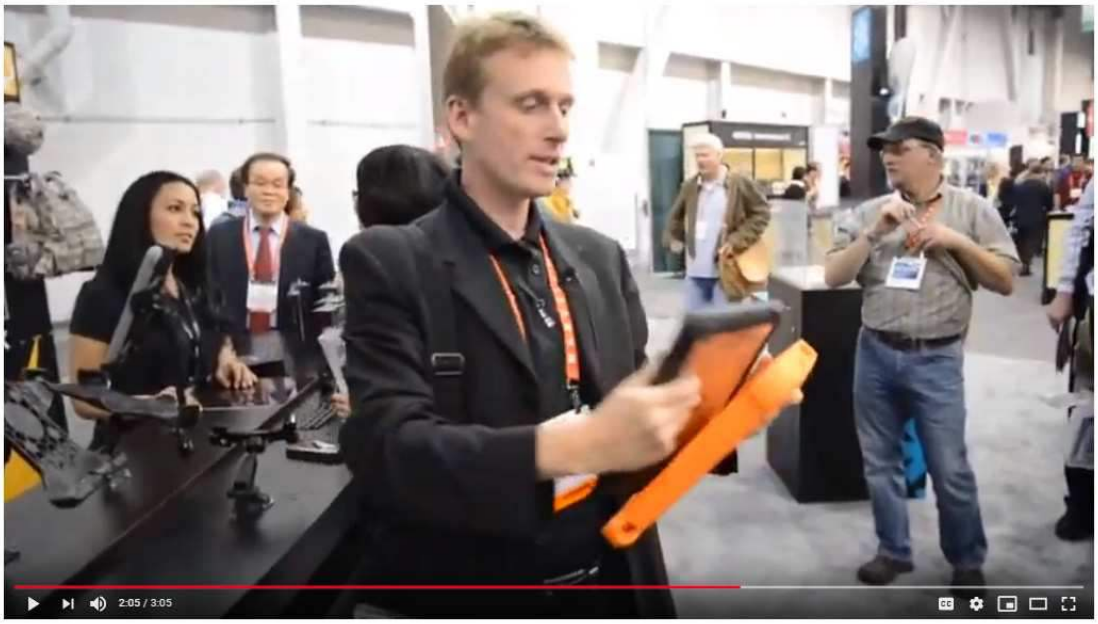




(Decl. of Jordan Vater ("Vater Decl.") ¶ 10.) The LIFEJACKET products are in the lower right corner of each display, in packaging showing a bright orange case.

Opposer also featured its LIFEJACKET products at the annual Consumer Electronics Show (CES) since 2012. (*Id.* at 4.) Images from online, public sources, are shown below:





CES 2013 - Lifeproof

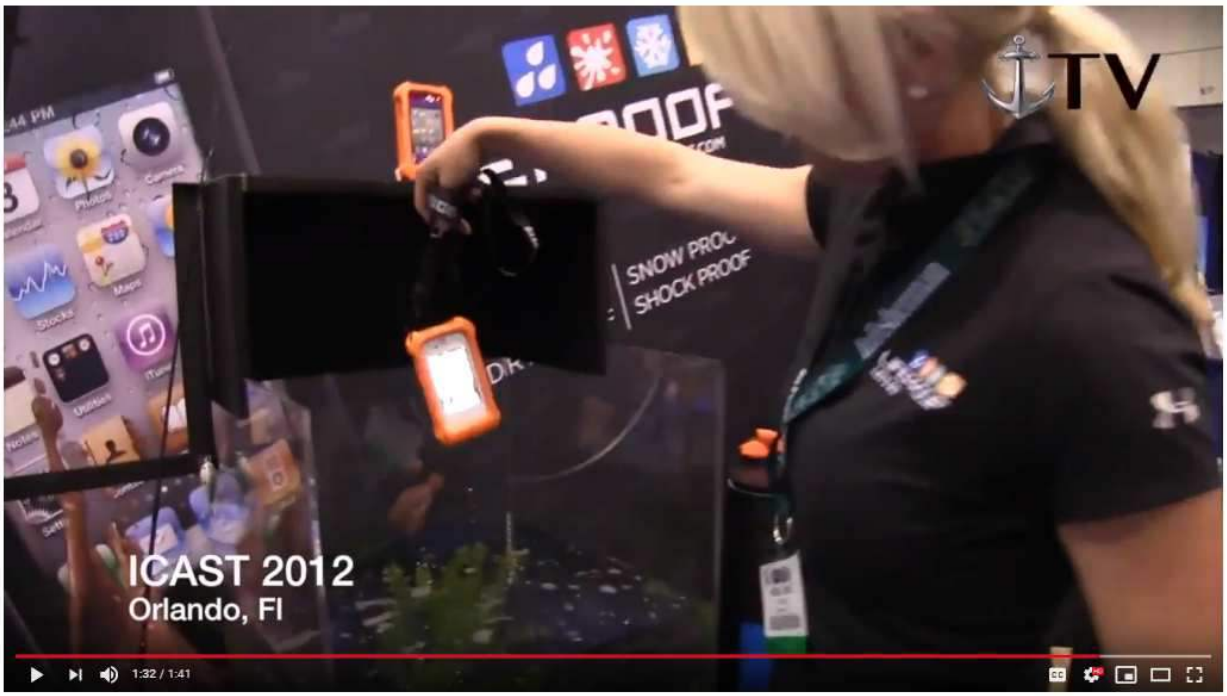
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(Vater Decl. ¶¶ 5-9.)

Opposer's LIFEJACKET products have also been the subject of substantial media coverage. (32 TTABVUE 4.) Exhibit 26[2] to Opposer's summary judgment brief listing media mentions of Opposer's products includes more than 25 articles specifically mentioning Opposer's LIFEJACKET products in publications such as Men's Journal, Boating Magazine, CNET, and Wired. (Decl. of Eric R. Chad ("Chad Decl.") Exs. 1-26.) A search on the Internet reveals dozens more. (Chad Decl. Exs. 28-42.)

For juxtaposition, Applicant failed to place into evidence ***any*** advertising, promotion, or media recognition for Applicant's LIFEJACKET speaker cases. The conclusion to draw is that Applicant's alleged [redacted] sales were made trading on the renown and goodwill of Opposer and its LIFEJACKET and LIFEPROOF brands. Opposer owns the LIFEJACKET trademark, and it has every interest in stopping competitors from appropriating its trademarks and avoiding consumer confusion.

III. APPLICANT'S LIFEJACKET MARK, ON APPLICANT'S GOODS, IS LIKELY TO CAUSE CONFUSION, MISTAKE OR DECEPTION.

Applicant's brief focuses on proving that Applicant's speaker cases are not mobile device cases. Applicant also focuses on the absence of confusion evidence; the absence of photographs of the parties' products directly side by side, today, on store shelves; and the alleged absence of commercial success of Opposer's LIFEJACKET product and decline in sales. All of these arguments are irrelevant in a Board proceeding under Section 2(d), which states:

> No trademark by which the goods of the applicant may be distinguished from the goods of others shall be refused registration on the principal register on account of its nature unless it—
>
> * * *
>
> (d) consists of or comprises a mark which so resembles a mark registered in the Patent and Trademark Office or a mark or trade name previously used in the

[2] Applicant consented to admission of this exhibit as part of the parties' ACR Stipulation. (28 TTABVUE ¶¶ 1-2.)

> United States by another and not abandoned, as to be likely, when used on or in connection with the goods of the applicant, to cause confusion, or to cause mistake, or to deceive . . . .

15 U.S.C. § 1052(d).

The statute does not require a challenger to prove consumers believe one product is the other. It simply requires proof of likely confusion, mistake, or deception in general. Confusion, mistake, or deception as to the source of Applicant's goods is actionable under § 2(d). *In re Cook Med. Techns. LLC,* 105 U.S.P.Q.2d 1377, 1379 (TTAB 2012).

Although Opposer does not believe this is a close case, the senior user of a mark is entitled to the benefit of any doubt as to a likelihood of confusion under §2(d) before the Board. *In re H.D. Vest, Inc*., Ser. No. 77599306, 2011 WL 481330, at *5 (TTAB Jan. 31, 2011) ("To the extent there are any doubts, we resolve them, as we must, in registrant's favor."); *Interstate Brands Corp. v. McKee Foods Corp.*, 53 U.S.P.Q.2d 1910, 1915 (TTAB 2000) ("[O]ne who adopts a mark similar to the mark of another for the same or closely related goods or services does so at his own peril and any doubt as to the similarity of the marks must be resolved against him."). All *duPont* factors weigh in favor of sustaining this opposition.

A. Priority is Proven: Opposer Used the LIFEJACKET Mark Before Applicant.

Applicant claims it has priority because Applicant used LIFEJACKET on speaker cases first. (37 TTABVUE 12.) But the legal question is which party used the mark first, generally. 15 U.S.C. § 1052(d) (stating a party must prove that, vis-à-vis the other party, it owns "a mark or trade name previously used in the United States…and not abandoned"); *Warner Bros. Entm't, Inc. v. Kaplan Tr.*, Cancellation No. 92043813, 2007 TTAB LEXIS 194, at *6 (TTAB Aug. 22, 2007) (non-precedential). Applicant admits "with respect to protective cases for cell phones, smart phones[,] and tablet computers, [Opposer] has priority with respect to" the LIFEJACKET mark. (37 TTABVUE 12.) Opposer established priority for this proceeding.

Applicant's cited cases address priority under the irrelevant "zone of expansion" doctrine, which is a priority doctrine in cases involving ***unrelated*** goods and intervening rights. 4 J. THOMAS MCCARTHY, MCCARTHY ON TRADEMARKS AND UNFAIR COMPETITION § 24.20 (5th ed.). This doctrine allows a senior user to tack on priority of use of a mark on ***unrelated*** goods if the senior user can prove consumers might "reasonably expect [the junior user's goods] to emanate from [the senior user] in the normal expansion of [the senior user's] business under the mark." *Mason Eng'g v. Mateson Chem. Corp.*, 225 U.S.P.Q. 956, 962 (TTAB 1985). The time period for assessing the zone of expansion question is "when the subsequent user first began to do business under its mark." *Id*. This doctrine does not apply in this case.

B. The Parties' Marks are Identical in Sight, Sound and Commercial Impression.

Applicant acknowledges in its responsive brief that the parties' LIFEJACKET marks are visually and phonetically "essentially the same." (37 TTABVUE 16.) Applicant's use of a house mark—ALTEC LANSING—does not alter the sight and sound similarities because the house mark is not included in the applied-for mark. *See In re Microsoft Corp.*, 68 U.S.P.Q.2d 1195, 1199 (TTAB 2003) (holding that plans to use house mark MICROSOFT in combination with the applied-for mark OFFICE.NET is irrelevant to whether that applied-for mark is confusingly similar to the previously registered mark OFFICENET for competitive software).

The parties' marks have the same meaning and commercial impression. Applicant argues its LIFEJACKET mark is a play on its "successful JACKET branded products" (37 TTABVUE 17), but presents no evidence to prove its JACKET products were successful or that consumers recognize the JACKET name. The evidence and 30(b)(6) testimony shows the marks convey the same commercial impression, namely, that the parties' LIFEJACKET products have waterproof and floatation features, among other benefits. (32 TTABVUE 12.) The parties' marks are identical in appearance, sound, connotation, and commercial impression.

C. A Viable Relationship Exists Between the Parties' Goods: They Are Related.

When the parties' marks are identical, the degree of similarity between the goods that is required to support a finding of likelihood of confusion declines. *In re Shell Oil Co*., 26 U.S.P.Q.2d 1687, 1688-89 (Fed. Cir. 1993) ("[E]ven when the goods or services are not competitive or intrinsically related, the use of identical marks can lead to the assumption that there is a common source"); *Time Warner Entm't Co. v. Jones*, 65 U.S.P.Q.2d 1650, 1661 (TTAB 2002); *In re Opus One Inc*., 60 U.S.P.Q.2d 1812, 1815 (TTAB 2001). The issue here is not whether purchasers would confuse the parties' goods (e.g., counterfeits), but rather whether there is a likelihood of confusion, mistake or deception ***as to the source*** of Applicant's goods. *Peter Piper, Inc. v. OTG Experience, LLC*, Opp. No. 91230289, Op. at *22 (TTAB Nov. 15, 2018) (non-precedential); *In re Cook Med. Techns. LLC,* 105 U.S.P.Q.2d 1377, 1380 (TTAB 2012). A "viable relationship between the goods" will support a finding of likelihood of confusion. *In re Thor Tech Inc.*, 90 U.S.P.Q.2d 1634, 1636 (TTAB 2009); *see also Peter Piper*, Op. at *22.

Opposer's evidence, summarized below, proves a viable relationship exists between Applicant and its cases for speakers, on the one hand, and Opposer and its cases for tablets/mobile phones, on the other hand:

- Many third parties have applied for and obtained use-based trademark registrations for both parties' goods.
- Many third parties use the same marks on both parties' goods.
- The goods are complementary because they are the type of goods that can be used together, as shown by Applicant's own social media pages.
- The goods are the type that are sold in the same sections of the same stores.
- Applicant attempted to register the LIFEJACKET mark (or very similar marks) for both phone and speaker cases.

(32 TTABVUE 18-23). Applicant provided no evidence to refute Opposer's evidence, only attorney argument and incorrect statements of law.

Specifically, Applicant did not provide any evidence that contradicts Opposer's proof (and Applicant's social media pictures) that cases for mobile devices and cases for speakers can be used at the same time, together[3] (32 TTABVUE 14-16). Applicant did not provide any evidence that shows Applicant's goods are sold far away from mobile device cases in stores. Applicant did not contest it uses the same marketing messages to sell its products as Opposer—snow proof, water proof, sand proof, etc. (32 TTABVUE 16-17). Applicant provided no evidence, other than argument, to contest Opposer's evidence showing Opposer is widely diversified in the mobile device accessory space. (32 TTABVUE 35.) Aside from attorney argument, Opposer's evidence is unrebutted. Applicant's other arguments are legally wrong, as discussed below.

1. Relatedness Must Be Assessed Based on the Goods Claimed in Applicant's Application Only.

Applicant asserts that "a protective covering for a cell phone or tablet computer, is a very different product from" "a speaker that includes a replaceable protective case." (37 TTABVUE 19.) This argument is legally wrong for two reasons. First, product confusion is not the relevant legal issue—***source confusion/deception/mistake is the issue***. *Peter Piper*, Op. at *22.

Second, Applicant's applied-for goods are cases for speakers, not the speakers themselves. In assessing the similarity or dissimilarity of the goods and services, the Board must consider the goods as they are described in the application and registration. *Stone Lion Capital Partners, LP v. Lion Capital LLP*, 110 U.S.P.Q.2d 1157, 1161 (Fed. Cir. 2014). As a result, the Board cannot give

[3] Applicant attempts to rebut this fact with only attorney argument that the products are not "used together." (37 TTABVUE 22.) Applicant's own social media posts demonstrate the contrary. For instance, two photographs from Applicant's Instagram page depict mobile phones, with protective cases, being used with Applicant's LIFEJACKET speakers in a complete system. A potential consumer, evaluating such a system and learning that both the phone case and the speaker were both branded LIFEJACKET could only conclude that they came from the same source. 4 J. THOMAS MCCARTHY, MCCARTHY ON TRADEMARKS AND UNFAIR COMPETITION § 24:26 (5th ed.); *see also, e.g.*, *In re Iolo Techs.*, 95 U.S.P.Q.2d 1498, 1500 (TTAB 2010) (finding that software for analyzing PC performance and computer troubleshooting services were related).

any probative value to Applicant's argument that its "LIFEJACKET product" is "a removable case that goes around the speaker" that is "not sold separately" from the speaker. (37 TTABVUE at 3.) There is nothing in Applicant's description of goods that prevents Applicant from offering speaker cases separately. *See, e.g., Peter Piper*, Op. at *22. ("[W]e cannot give any probative value to Applicant's argument that it does not intend to use its marks in connection with offering food related services or products sold directly to end consumers at airports, because there is nothing in Applicant's description of goods and services that prevents Applicant from offering those goods and services to the ultimate consumers at airports.")

2. Whether the Parties' Goods are Side-By-Side in Stores, Today, is Not Relevant to the Relatedness Inquiry.

Applicant contends the parties' goods are not related because Opposer failed to produce a photograph of the parties' respective products side-by-side in stores. This argument is legally wrong for two reasons. First, this *duPont* factor simply asks whether there is a viable relationship between the applied-for goods, and the registrant's goods. Applicant's test is too limiting and contrary to case law.

Second, side-by-side proof is not required where an application lacks restrictions, because "goods and services are presumed to travel in the same channels of trade to the same class of purchasers." *In re Hughes Furniture Industries, Inc*., 114 U.S.P.Q.2d 1134, 1137 (TTAB 2015) ("Because the identifications of goods in the application and registration are legally identical and unrestricted as to trade channels, we must also presume that both Applicant's and Registrant's legally identical products travel in the same ordinary trade and distribution channels and will be marketed to the same potential consumers."); *see also* TMEP § 1207.01(a)(iii). Absent restrictions, similarity in the parties' marks and goods is presumed to create the present or future possibility of the products side-by-side on store shelves. Opposer has presented more than enough evidence to show that consumers would draw this conclusion.

3. Opposer's Third Party Registrations and Third Party Usage Evidence are Relevant and From the Proper Time Frame.

Applicant tells the Board to ignore Opposer's evidence of third party registrations and third party use[4] because the evidence is not exclusively dated before 2014. Applicant again mixes up the zone of expansion doctrine and a straightforward likelihood of confusion analysis. The zone of expansion/doctrine of natural expansion is a priority doctrine. Separately, the relatedness of goods is a factor to be considered under *In re E.I. du Pont de Nemours & Co.*, 476 F.2d 1357, 1361 (C.C.P.A. 1973) (hereinafter "*duPont*"). These are two distinct principles.

The correct timeframe for factual evidence supporting a *duPont* analysis in a Board proceeding is up through trial, not a snapshot in time when Applicant adopted the LIFEJACKET mark. *See Hornby v. TJX Cos., Inc.*, Cancellation No. 92044369, 2008 WL 1897568, at *4 (TTAB Apr. 22, 2008) ("[W]ith respect to the petitioner's likelihood of confusion claim, our determination is based on the factual situation as of the time of trial . . . ."); *Virgin Enters. Ltd. v. Albion Motors Ford Mercury, Inc.*, Opp. Nos. 91153575, 91153612, 91154161, 2007 WL 2344691, at *16 (TTAB Aug. 10, 2007) (non-precedential) ("[T]he Board generally accepts and considers evidence related to likelihood of confusion and similar issues for the period up to the time of trial."). Opposer's evidence proving the viable relationship between the parties' goods can be dated up through trial.

The single case cited and quoted by Applicant addresses the priority doctrine of natural expansion/zone of expansion. In that case, *Technology Advancement Group*, the excerpt from the Board's decision cited by Applicant (37 TTABVUE 20-21) appears in the section of the decision addressing "Priority," not "Likelihood of Confusion." Cancellation Nos. 92028748, 92028775,

[4] In its responsive brief, Applicant falsely asserts that the examples of third-party use and/or third-party registrations is limited to circumstance in which the third party used or registered the same mark for protective cases for mobile electronics and speakers but not speaker cases. (37 TTABVUE 21.) This is incorrect. In its opening brief, Opposer cited numerous examples of third parties that registered or used the same mark for both protective cases for mobile electronics ***and*** for speaker ***cases***. (32 TTABVUE 19-23.)

and 92028781, 2005 TTAB LEXIS 290, at *11, 24-26. This case does not support Applicant's misconstruction of the law.

Applicant also challenges the relevance of Opposer's 50+ third party registrations and examples of third party use of trademarks on both speakers and cases for mobile devices. Applicant says this evidence is not relevant because Applicant's applied-for goods are cases for speakers. Yet, throughout its brief, Applicant refers to its own LIFEJACKET product as just a speaker, or a "speaker that includes a replaceable protective case."[5] Applicant views its case and speaker as connected. Opposer's evidence expands on this theory, showing consumers, and the PTO, know that the same companies use the same marks on (1) speakers and cases for speakers; and (2) cases for mobile devices. A viable relationship between all three of these products exists.

Applicant was free to compile evidence that the USPTO has registered the same mark to different parties for the goods in question, but did not. *See, e.g., In re G.B.I. Tile and Stone Inc.*, 92 U.S.P.Q.2d 1366, 1369-70 (TTAB 2009) (Third party registrations supported argument that cited registration's roofing tiles and applicant's floor tiles were likely to originate from a common source; Board noted that applicant can also cite third party registrations to suggest opposite: that USPTO has registered same mark to different parties for goods in question). Opposer's evidence is unchallenged.

[5] For instance, in its brief, Applicant makes each of the following statements: "Sakar developed a new speaker [and] . . . selected LIFEJACKET as the name of the new product." (37 TTABVUE 2-3.) "[T]he LIFEJACKET branded product is sold under the ALTEC LANSING name, and the speaker portion prominently displays that name." (*Id.* at 3.) "The LIFEJACKET branded products compete against higher-end audio brands such as Bose, JBL and Sony." (*Id.* at 4.) "The LIFEJACKET branded products have a retail price, depending on the model, from between $69 and $299." (*Id.* at 6.) "LIFEJACKET branded products are sold in the electronics section of retailers where audio speakers are sold." (*Id.*) "The LIFEJACKET name would certainly not be one that a consumer would expect to be used with a speaker." (*Id.* at 20.) Applicant also includes in its brief a table listing the unit and dollar sales of its LIFEJACKET product. To be clear, these are sales of speakers, not protective case speakers.

D. Applicant Lacks Support for the Contention that it Sells to Audiophiles.

Applicant contends it targets "audiophiles knowledgeable of the ALTEC LANSING brand." (37 TTABVUE 16.) The three exhibits cited do not support its "audiophile" customer theory. Two exhibits were created in the context of these proceedings, namely (1) the deposition testimony of Applicant's 30(b)(6) designee (37 TTABVUE at Remaklus Decl. Ex. 1 at 37-38) and (2) Applicant's answers to interrogatories (37 TTABVUE at Remaklus Ex. 2 at Resp. to Interrog. No. 5). The Board should give little or no weight to such self-serving statements made in the context of these proceedings. *Rogers Corp. v. Fields Plastics & Chems., Inc.*, 176 U.S.P.Q. 280, 282 (TTAB 1972) ("The opinion of opposer's vice-president on the issue before us is nothing more than a self-serving statement by an interested party and, as such, is devoid of probative value in a proceeding of this character."); *Fuld Bros., Inc. v. Carpet Techn. Serv. Inst., Inc.*, 174 U.S.P.Q. 473, 476 (TTAB 1972) (finding self-serving statements inadmissible).

The third citation, an apparent PowerPoint presentation, highlights the "rugged" nature of Applicant's speakers and not audio features. (37 TTABVUE at Remaklus Ex. 7). Applicant's other examples in its brief, namely the images on page 4 and 5, again focus on the rugged nature and not the audio quality. Both parties target general consumers; this factor weighs in favor of Opposer.

E. The Level of Commercial Success of Opposer's LIFEJACKET Products does not Weigh in Favor of Applicant.

Applicant tells the Board that because the LIFEJACKET mark is not famous, and its sales decreased year over year, it must be weak. But the absence of evidence that a mark is famous or a global best-seller does not support the conclusion that Opposer's mark is conceptually or commercially weak. 15 U.S.C. § 1052(d) does not solely protect famous marks that have been wildly commercially successful. An applicant cannot register a similar mark simply because a prior registrant's use is relatively small: "A newcomer does not gain the right to register a substantially identical mark simply because the number of persons exposed to the

registrant's mark may be small in relation to the newcomer's volume of use." *In re Shell Oil Co*., 992 F.2d 1204, 26 U.S.P.Q.2d 1687 (Fed. Cir. 1993) (noting that reverse confusion may harm the prior registrant).

Setting fame aside, the evidence shows Registrant's LIFEJACKET mark is conceptually strong. Opposer owns an incontestable registration on the principal register. Applicant did not present any evidence of dilution. The mark is not descriptive, and is at the very least suggestive.

As to commercial strength, Opposer sold millions of dollars of LIFEJACKET products. Opposer marketed the products at large trade shows, with point-of-sale advertising at nationwide retailers, and the products have received nationwide unsolicited media attention. *Supra*, Section II. The products are sold online today, including on Amazon.com. (Vater Decl. ¶ 3.) Whether Opposer sells a large number of LIFEJACKET cases today in retail stores is not legally relevant, and Applicant provides no law for this proposition. The strength of the mark favors Opposer.

F. The Absence of a Large Number of Reports of Actual Confusion is not Dispositive.

1. Opposer Produced Evidence of Confusion and Mistake.

Legally, confusion evidence is not limited to purchasers confusing the parties' goods, it can also be confusion or mistake as to the source of these goods and services. *Cook Med. Techns. LLC,* 105 USPQ2d 1377, 1380 (TTAB 2012). Here, Opposer presented evidence of a user review of one of Applicant's LIFEJACKET speakers that attributed Opposer ***as the source***:



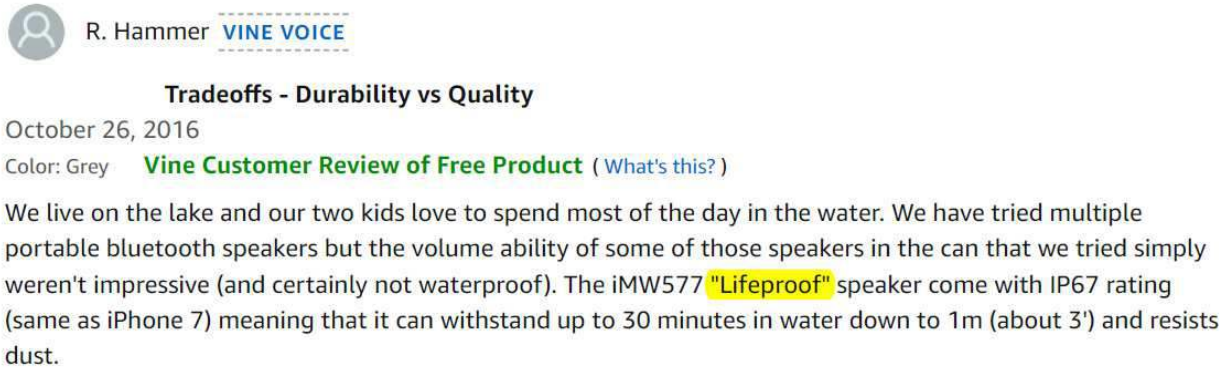
(32 TTABVUE at 31.)

Applicant attempts to explain this instance of actual confusion as to source based on two faulty assumptions. First, Applicant assumes that, because the reviewer posted her or his review on the webpage for Applicant's LIFEJACKET 3 product, the reviewer knew the product came from Applicant, rather than Opposer. But it is entirely possible that the reviewer knew he or she had purchased a speaker branded LIFEJACKET without knowing Applicant.

Second, Applicant assumes that, because Opposer was not selling speakers at the time the review was posted, the reviewer could not have believed that the speaker came from Opposer. To the contrary, this post shows the relatedness of the goods. This customer saw LIFEJACKET, believed the speaker/speaker case came from Opposer and identified Lifeproof as the source.

More reasonable than accepting Applicant's unsupported assumptions is to take the review at face value: the reviewer purchased a speaker branded LIFEJACKET and associated the speaker and name with Opposer's LIFEPROOF products. This supports a conclusion that consumer confusion or mistake is likely.

Since Opposer's opening brief, Opposer has uncovered an additional instance of actual confusion. Specifically, a user operating under the handle R. Hammer reviewed a Life Jacket 2 speaker with model number iMW575. In the review, the reviewer identified the speaker as "The iMW577 'Lifeproof' speaker."


R. Hammer VINE VOICE

Tradeoffs - Durability vs Quality

October 26, 2016

Color: Grey **Vine Customer Review of Free Product** (What's this?)

We live on the lake and our two kids love to spend most of the day in the water. We have tried multiple portable bluetooth speakers but the volume ability of some of those speakers in the can that we tried simply weren't impressive (and certainly not waterproof). The iMW577 "Lifeproof" speaker come with IP67 rating (same as iPhone 7) meaning that it can withstand up to 30 minutes in water down to 1m (about 3') and resists dust.

(Chad Decl. Ex. 27.) Again, this consumer believed ***Opposer, d/b/a LIFEPROOF, was the source*** of this LIFEJACKET product. This review further demonstrates that consumer confusion is likely between the parties' respective LIFEJACKET marks.

2. An Absence of Actual Confusion Does Not Prove No Confusion; the Absence of Evidence is Not Dispositive.

If the Board is not persuaded by Opposer's evidence, the only conclusion the Board may draw is that there is no evidence of any actual confusion known to the parties in the record. *Chevron Chem. Co. v. Voluntary Purchasing Grps., Inc.*, 212 U.S.P.Q. 904, 913 (5th Cir. 1981) (absence of evidence of actual confusion does not necessarily prove the converse because of difficulty of detection of instances of actual confusion); *see also CAE, Inc. v. Clean Air Eng'g, Inc.*, 60 U.S.P.Q.2d 1449, 1467 (7th Cir. 2001) (finding that a 25-year history without reported incidents of actual confusion does not prevent a finding that confusion is likely and "the most that the absence of evidence of factual confusion can be said to indicate is that the record does not contain any evidence of actual confusion known to the parties.").

The absence of evidence of actual confusion is of little weight and not dispositive in Board proceedings. *Nash-Finch Co. v. Ahold Licensing Sarl*, Cancellation No. 92058000, 2016 TTAB LEXIS 183, at *23 (TTAB May 6, 2016) ("[I]t is well-settled that . . . while the presence of confusion may be very useful to our analysis, the lack of evidence of actual confusion carries little weight.")[6] Applicant's case law does not stand for the proposition that the absence of evidence of actual confusion is dispositive.

[6] *See also Herbko Int'l Inc. v. Kappa Books, Inc.*, 308 F.3d 1156, 1165 (Fed. Cir. 2002); *J. C. Hall Co. v. Hallmark Cards, Inc.*, 144 U.S.P.Q. 435, 438 (C.C.P.A. 1965) ("Absence of proof of actual confusion is of minor relevancy in the resolution of the issue."); *Lebanon Seaboard Corp. v. R & R Turf Supply, Inc.*, 101 U.S.P.Q.2d 1826, 1834 (TTAB 2012) ("We recognize that evidence of actual confusion is difficult to obtain."). Instead, factors such as similarity of the marks and relatedness of the goods can be dispositive factors. *Herbko*, 308 F.3d at 1164.

Applicant first relies on *Citigroup Inc. v. Capital City Bank Group, Inc.*, 94 U.S.P.Q.2d 1645 (TTAB 2010). Though the Board did find the absence of actual confusion weighed in favor of the applicant in that proceeding, it was one of several factors the Board found in applicant's favor. *Id.* at 1664-65. The Board also found there were "significant" differences between the parties' marks and the consuming public would find the words "City" and "Bank" in the applicant's mark were generic descriptions identifying a community bank. *Id.* at 1664. Also distinguishable are *INTS It Is Not The Same GmbH v. Disidual Clothing, LLC*, Opp. No. 91212768, 2017 TTAB LEXIS 388 (Sept. 28, 2017), *CareFirst of Md., Inc. v. First Care, P.C.*, 434 F.3d 263 (4th Cir. 2006), *Oreck Corp. v. U.S. Floor Sys.*, 803 F.2d 166 (5th Cir. 1986), and *Pignons S.A. de Macanique de Precision v. Polaroid Corp.*, 657 F.2d 482 (1st Cir. 1981). As in *Citigroup*, the Board in *INTS* found that the marks at issue were dissimilar, and, in *CareFirst*, *Oreck*, and *Pignons*, the Fourth, Fifth, and First Circuits, respectively, held that ***none*** of the likelihood of confusion factors favored the plaintiff. *INTS*, 2017 TTAB LEXIS 338, at *24-25; *Carefirst*, 434 F.3d 274; *Oreck*, 803 F.2d at 174; *Pignons*, 657 F.3d at 492.

In both *Barbara's Bakery* and *Gillette Canada*, cited in the excerpt from *Citigroup* quoted by Applicant, the Board found that confusion was likely and sustained the opposer's oppositions, despite the fact that the record was devoid of evidence of actual confusion. *Barbara's Bakery Inc. v. Landesman*, 82 U.S.P.Q.2d 1283, 1287, 1289 (TTAB 2007); *Gillette Canada Inc. v. Ranir Corp.*, 23 U.S.P.Q.2d 1768, 1773 (TTAB 1992). In both *Red Carpet* and *Central Soya*, also cited in Applicant's excerpt from *Citigroup*, the Board found the design marks at issue were dissimilar from opposer's. *Red Carpet Corp. v. Johnstown Am. Enters. Inc.*, 7 U.S.P.Q.2d 1404, 1407 (TTAB 1988); *Central Soya Co., Inc. v. N. Am. Plant Breeders*, Opp. No. 62,591, 1981 TTAB LEXIS 5, at *32 (TTAB Sept. 4, 1981).

Finally, in *Lever Brothers Co. v. American Bakeries Co.*, while the court did find an absence of actual confusion to be relevant, it found that five of the remaining six factors under the Second Circuit's likelihood-of-confusion test also warranted a finding that confusion was unlikely. *Lever Bros.*, 693 F.2d 251, 259 (2d Cir. 1982). These cases are in stark contrast to this case, where many, if not all, of the *duPont* factors favor Opposer.

IV. APPLICANT'S LIFEJACKET MARK IS ALSO CONFUSINGLY SIMILAR TO OPPOSER'S LIFEPROOF MARK.

Applicant does not challenge Opposer's registrations or priority date for Opposer' LIFEPROOF marks. (*See* 32 TTABVUE 40-41.) Applicant instead attacks Opposer's rights in its LIFEACTIV mark because it is not registered. A party may prevail on a claim of likelihood of confusion based on its ownership of common law rights in a mark where the mark is distinctive, inherently or otherwise, and the party can show priority of use based on prior trademark use. *Wet Seal Inc. v. FD Mgmt. Inc.*, 82 U.S.P.Q.2d 1629, 1634 (TTAB 2007). Here, Opposer has provided a specimen of the LIFEACTIV mark (32 TTABVUE at Vater Decl. Ex. 2), testimony regarding continuous use (Vater Decl. ¶ 11), and sales information showing sales of LIFEACTIV products back to 2015. (11 TTABVUE at Chad Decl. Ex. 12.) The evidence shows Opposer owns a family of LIFE marks: LIFEPROOF, LIFEJACKET and LIFEACTIV.

Applicant attacks the similarity of the marks. The similarity between LIFEJACKET and the LIFEPROOF marks is proven with Opposer's evidence of actual confusion. Consumers see Applicant's LIFEJACKET mark and think of LIFEPROOF. *Supra* at Section III(F)(1). Further, the parties' marks convey the same meaning—protection. The commercial impression is the same, given that both parties focus on the protective features of the products. Applicant touts its own LIFEJACKET product is "shock proof . . . and also waterproof" and "waterproof, sand proof, snow proof and shock proof – which equals everything proof." (37 TTABVUE 2, 5.) Applicant admits Opposer markets using the same messaging. (*Id.* at 24.)

Applicant argues Opposer must prove the strength of its LIFEPROOF mark in 2014, not 2017.[7] (37 TTABVUE at 25.) Applicant cites no case law for this proposition. There is none. Evidence supporting the *duPont* factors can be dated up through the time of trial. *See Hornby v. TJX Cos., Inc.*, Cancellation No. 92044369, 2008 WL 1897568, at *4 (TTAB Apr. 22, 2008) ("[W]ith respect to the petitioner's likelihood of confusion claim, our determination is based on the factual situation as of the time of trial . . . ."). Opposer's evidence of the strength of its LIFEPROOF marks stands unrebutted. (*See* 32 TTABVUE 34.) Given the fame of the LIFEPROOF mark, as well as Opposer's LIFE family of marks, consumers are likely to believe that Applicant's LIFEJACKET product—a mobile device accessory—comes from Opposer. The opposition should be sustained.

V. APPLICANT DOES NOT ADDRESS ITS FAILURE TO USE THE LIFEJACKET MARK ON THE GOODS IDENTIFIED IN ITS APPLICATION.

As Opposer explained in its opening brief, Applicant does not actually use its LIFEJACKET mark in connection with the sale of speaker cases despite the fact that Applicant's pending application is a use-based application for the LIFEJACKET mark used in connection with speaker cases. (32 TTABVUE 36.) Rather, Applicant sells speakers, and only speakers, under the LIFEJACKET mark. Speaker cases are not sold separately and are offered separately only as a replacement part. (*Id.*) In circumstances such as these, refusal of an application is proper. *J.E.M. Int'l Inc. v. Happy Rompers Creations Corp.*, 74 U.S.P.Q.2d 1526, 1530 (TTAB 2005) (non-precedential) ("[T]he USPTO will not issue a registration based on use covering goods upon which the mark has not been used, ..."); *Herbaceuticals, Inc. v. Xel Herbaceuticals, Inc.*, 86 U.S.P.Q.2d 1572, 1576 (TTAB 2008) (gathering cases). Far from providing persuasive authority rebutting this

[7] Applicant also argues the parties' channels of trade are not similar, the parties target different consumers and that the parties' goods are expensive. These issues are addressed in this Reply, *supra*, at III(c)(2), and Opposer's main brief at 34.

fact, Applicant ignores it completely. This failure is significant and, by itself, warrants a refusal of Applicant's application.

VI. CONCLUSION.

As Opposer explained in its opening brief, an opposition should be sustained. Opposer proved that a likelihood of confusion, mistake or deception exists and Opposer will be damaged by registration of the mark at issue. For the reasons set forth above, as well as those articulated in Opposer's opening brief and in connection with its motion for partial summary judgment, Opposer requests that the Board sustain the opposition and refuse registration to Applicant's application.

TREEFROG DEVELOPMENT, INC.
By its attorneys,

Date: November 29, 2018

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CERTIFICATE OF SERVICE

I hereby certify that a true and correct copy of the foregoing OPPOSER'S REBUTTAL BRIEF was filed electronically and served on this 29th day of November 2018, via email to:

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